

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4084

By: Alonso-Sandoval

AS INTRODUCED

An Act relating to professions and occupations;
enacting the Oklahoma Worker Heat Safety and
Protection Act; defining terms; defining
applicability; requiring employer heat safety
training; requiring posting safety hazards;
establishing rest break, shade, and water
requirements; providing for codification; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 7001 of Title 59, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Worker
Heat Safety and Protection Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 7002 of Title 59, unless there
is created a duplication in numbering, reads as follows:

For purposes of this act:

1 1. "Acclimatization" means the gradual adaptation of an
2 individual to heat stress;

3 2. "Employee", "Employer" and "Employment" have the meanings
4 provided in the Oklahoma Employment Security Act, Sections 1-201
5 through 1-231 of Title 40 of the Oklahoma Statute;

6 3. "Extreme heat" means a heat index at or above eighty (80°)
7 degrees Fahrenheit measured at the worksite;

8 4. "Heat index" means a combined measure of air temperature and
9 humidity at the worksite;

10 5. "Heat stress" means the net heat load to which an employee
11 is exposed, including environmental factors, radiant heat sources,
12 and physical exertion;

13 6. "Heat-related illness" includes, but is not limited to, heat
14 stroke, heat exhaustion, heat cramps, heat syncope, and dehydration;

15 7. "Rest break" means a paid break from work duties during paid
16 work hours, separate from a meal period; and

17 8. "Shaded area" means a space that provides relief from direct
18 sunlight and adequate airflow for employees during breaks or when
19 experiencing symptoms of heat stress.

20 SECTION 3. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 7003 of Title 59, unless there
22 is created a duplication in numbering, reads as follows:

23 This act applies to all employers whose employees perform work
24 activities during periods when the heat index at the worksite

1 reaches or exceeds eighty (80°) degrees Fahrenheit, regardless of
2 industry or worksite location. Emergency response activities during
3 disaster or essential service restoration are exempt.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 7004 of Title 59, unless there
6 is created a duplication in numbering, reads as follows:

7 A. Employers must provide heat safety training in a language
8 and manner employees understand.

9 B. Training must cover:

- 10 1. Recognizing signs and symptoms of heat-related illness;
- 11 2. Importance of hydration and rest;
- 12 3. Heat acclimatization;
- 13 4. Employer emergency response procedures; and
- 14 5. Worker and supervisor responsibilities.

15 C. Training must be provided to new employees before heat
16 exposure and annually thereafter.

17 SECTION 5. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 7005 of Title 59, unless there
19 is created a duplication in numbering, reads as follows:

20 Employers must prominently post workplace notices describing
21 heat safety requirements and employee rights in languages understood
22 by the workforce.

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1 SECTION 6. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 7006 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Employers shall provide paid rest breaks based on the heat
5 index:

6 1. Heat index of eighty to ninety degrees (80°-90°) Fahrenheit -
7 at least fifteen (15) minutes every four (4) hours worked;

8 2. Heat index ninety-one to one hundred two degrees (91°-102°)
9 Fahrenheit - at least 15 minutes every two (2) hours worked;

10 3. Heat index greater than or equal to one hundred three
11 degrees (103°) Fahrenheit - at least twenty (20) minutes every hour
12 worked.

13 B. Rest breaks must be separate from meal periods.

14 SECTION 7. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 7007 of Title 59, unless there
16 is created a duplication in numbering, reads as follows:

17 Employers must provide access to shaded areas that are:

18 1. Close to work areas;

19 2. Ventilated or cooled; and

20 3. Large enough for employees to rest comfortably.

21 If shade cannot be provided safely, employers must offer
22 alternative cooling methods, such as cooling vests and misting fans.

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1 SECTION 8. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 7008 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 Employers must provide employees with a sufficient supply of
5 cool, potable water at no cost:

- 6 1. Located near work areas;
- 7 2. At least thirty-two (32) ounces per hour of work; and
- 8 3. Maintained at or below seventy-seven degrees (77°)
9 Fahrenheit.

10 SECTION 9. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 7009 of Title 59, unless there
12 is created a duplication in numbering, reads as follows:

13 A. Employers must establish a plan to gradually increase
14 exposure to extreme heat for:

- 15 1. New employees; and
- 16 2. Employees returning after absence or who have worked extreme
17 heat previously.

18 B. Plans must ensure employees are supervised and their
19 exposure increases gradually over a set acclimatization period.

20 SECTION 10. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 7010 of Title 59, unless there
22 is created a duplication in numbering, reads as follows:

23 A. Employers must have and implement written emergency response
24 procedures for heat-related illness, including:

1 1. Monitoring the heat index;

2 2. Designating responsible individuals to call emergency
3 services;

4 3. Pairing employees as safety partners; and

5 4. Prompt documentation and response to symptoms.

6 SECTION 11. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 7011 of Title 59, unless there
8 is created a duplication in numbering, reads as follows:

9 Employers may not retaliate or discriminate against employees
10 for:

11 1. Taking required breaks or accessing water/shade;

12 2. Reporting heat-related symptoms;

13 3. Filing complaints or participating in enforcement; or

14 4. Refusing unsafe work due to heat hazards.

15 SECTION 12. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 7012 of Title 59, unless there
17 is created a duplication in numbering, reads as follows:

18 A. Employees may file a complaint with the Oklahoma Department
19 of Labor.

20 B. The Department shall investigate reported violations and may
21 impose administrative penalties for noncompliance.

22 C. Remedies for retaliation include reinstatement, back pay,
23 and benefits restoration.
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1 SECTION 13. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 7013 of Title 59, unless there
3 is created a duplication in numbering, reads as follows:

4 The Oklahoma Department of Labor shall publish online guidance
5 for employers and employees on heat safety, training requirements,
6 and best practices.

7 SECTION 14. This act shall become effective November 1, 2026.

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